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UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

RESPONSE BRIEF OF APPELLEE BLUE CEDAR COMPLIANCE, INC.

Introduction

Filed April 15, 2026.

The district court acted within its discretion when it excluded a materially new subject that Benton's counsel knew before the supplementation deadline but withheld until after discovery and the opening summary-judgment brief. Rules 26 and 37 did not require Blue Cedar to anticipate that Wynn would add protected-activity language to a conversation explored at deposition without that language. The court assessed surprise, cure, disruption, importance, and counsel's explanation, then confined the sanction to the new subject and two-page declaration.

Summary judgment also should be affirmed. Blue Cedar implemented a genuine reduction in force that removed five filled positions and two vacancies, met a documented \$612,000 target, and redistributed duties according to continuity, travel, and automation needs. Benton's evidence supports disagreement with several calibration judgments, but it does not reasonably show that retaliation was the real and but-for reason Pike chose B-7. The admitted record contains no retaliatory instruction or statement by Pike and no evidence that Voss controlled his decision.

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Jurisdiction and standards of review

Blue Cedar agrees that the December 19, 2025 final judgment is appealable under 28 U.S.C. § 1291 and that Benton's January 16, 2026 notice was timely. The interlocutory exclusion order merged into the final judgment. No jurisdictional issue prevents decision of either question presented.

This court reviews the Rule 26 determination and Rule 37(c)(1) remedy for abuse of discretion. It does not substitute its preferred cure merely because another response might also have been reasonable. *Benjamin v. Sparks* places the burden of substantial justification or harmlessness on the nondisclosing party and considers surprise, ability to cure, disruption, importance, and explanation. Summary judgment is reviewed de novo, with reasonable inferences for Benton, but an inference must arise from admitted evidence rather than speculation. *Foster* requires evidence that retaliation was the real reason and therefore a but-for cause, not simply evidence that an employer could have made a different business choice.

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Nature of the case and record boundary

Benton opposed a claimed sex-based assignment practice on January 17 and filed an EEOC charge on February 3. Blue Cedar received agency notice on February 10. A company-wide RIF process opened February 14 and ended with Pike's approval of scenario B-7 on March 21. Benton and four other employees were terminated March 24; two vacancies were eliminated. Benton later brought one Title VII retaliation claim.

The district record totals JA1–JA262. The court's December 1 order preserved the late Wynn declaration for review of exclusion but barred the materially new protected-activity subject from the merits. It left intact Wynn's deposition, scorecards, duties, and other comparator evidence. Blue Cedar accordingly addresses exclusion using JA194–JA195 and the Rule 37 submissions. Its merits defense relies only on admitted materials. If this court affirms the evidentiary ruling, it must maintain the same boundary rather than allowing the excluded wording to influence review of summary judgment indirectly.

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The supplementation failure was undisputed

Benton's initial disclosure identified Wynn as someone with knowledge about assignments, redistribution, scoring, and comparator treatment. It did not identify a conversation in which Voss allegedly connected Benton's protected activity to possible elimination. At Wynn's October 2 deposition, counsel asked about Northline and the possible handoff. Wynn described coverage but did not mention the alleged words "HR and EEOC problem." JA136–JA145. Her declaration added that reason- linked wording for the first time. JA194–JA195.

Benton forwarded the new subject to counsel on October 15. The court-ordered cutoff was October 17. Counsel neither served a correction identifying the subject nor requested leave. Counsel interviewed Wynn October 20, obtained a signed declaration November 3, served it November 4, and filed it November 10 with the opposition brief. JA227–JA231. Rule 26(e)(1) required timely supplementation once counsel knew the prior subject description and discovery response were materially incomplete. Identification of the witness for other subjects did not disclose this one.

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Surprise was concrete, not technical

The new subject changed the evidentiary character of the March 7 inquiry. Coverage testimony asks whether Wynn could take Northline. The declaration asserted that Voss prefaced that inquiry by calling Benton an “HR and EEOC problem.” That addition supplied the only asserted statement in the record expressly joining protected activity, possible position removal, and a transferred duty. It was therefore not a minor elaboration of known details.

Blue Cedar deposed Wynn before the new account surfaced and defended Voss's deposition without an opportunity to test the alleged words. It prepared its October 27 summary-judgment motion on the discovery record then known. Benton first served the declaration eight days later and used it in her November 10 opposition. That sequence forced Blue Cedar to confront a new motive subject after its principal merits filing and after the court had closed discovery. The district court reasonably found meaningful surprise even though the witness, date, and Northline assignment were known. Rule 26 requires disclosure of subjects precisely because a name alone does not reveal them.

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Cure would have reopened completed work

Benton proposes two supplemental depositions and adjusted briefing as if that remedy were a small administrative step. It would have required Blue Cedar to prepare and examine Wynn again, prepare and defend Voss again, assess preservation and surrounding communications, revise its reply, and potentially seek further testimony about context. The parties had already completed seven depositions. Blue Cedar had already filed its summary-judgment motion. Trial was set for January 26, 2026, leaving the court to resolve the motion and prepare the case on a compressed schedule.

Ability to imagine a cure does not establish harmlessness. The district court could consider who created the need, when correction could have occurred, and how reopening would affect the existing schedule. Counsel had two days before the cutoff to serve the new subject or seek prompt guidance, then waited twenty days before service. On that record, the court reasonably found that a cure would impose nontrivial expense and disrupt the orderly resolution of a fully briefed motion.

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Importance and explanation supported the ruling

The declaration's importance did not compel admission. Under Benjamin, importance bears on harmlessness but may heighten prejudice when a significant new subject arrives after discovery. The district court recognized that the alleged wording could matter to Benton's theory. It then explained why importance made timely disclosure and fair examination especially necessary. JA233–JA235. The court did not mechanically treat importance as a reason for exclusion; it weighed that factor with surprise, cure, and disruption.

Counsel's explanation was inadequate. Verification could justify a short interval, but it did not prevent a subject-only supplement stating that Wynn recalled protected-activity wording, nor a motion for leave on October 15 or 16. Waiting for a signed declaration was counsel's choice, not an external barrier. The signed statement then remained unserved for another day and was held for use with the opposition. The district court was entitled to find no substantial justification for missing the exact cutoff despite timely knowledge.

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The sanction was narrowly fitted

The order did not strike Wynn as a witness, erase her deposition, exclude her score or duties, award fees, invoke contempt, or bar Benton's comparator theory. It excluded only the materially new protected-activity subject and the two pages containing it. JA232–JA235. Wynn's testimony about Northline coverage remained admitted. The court expressly declined to apply a sham-affidavit rule and did not find that her recollection was false.

That precision answers Benton's proportionality argument. Rule 37(c)(1) identifies nonuse of undisclosed information as an available consequence absent justification or harmlessness. The district court matched nonuse to the undisclosed subject and preserved everything timely made known. Benton now asks this court to require reopening and costs because those alternatives were possible. Abuse-of-discretion review asks whether the selected remedy was permissible after a reasoned application of the factors. The court's detailed chronology and limited scope place this ruling comfortably within that range. The exclusion should be affirmed without expanding it.

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Title VII and Foster require ultimate causation

Blue Cedar accepts for summary judgment that Benton's internal opposition and EEOC charge were protected, that termination was adverse, and that the initial causal threshold was met. Pike knew before March 24 that Benton had raised an assignment concern and an EEOC matter. Blue Cedar also carried its intermediate burden by producing a legitimate reason: a documented savings target and selection of a plan Pike believed best preserved necessary coverage.

The dispute therefore lies at pretext and but-for causation. Foster permits circumstantial proof and does not alter the favorable-inference rule. But it still requires evidence from which a jury could find retaliation was the real reason and that Benton would not have been selected absent her protected activity. Temporal proximity can support an initial inference without proving that ultimate proposition. Imperfect process, disputed business judgment, or proof that another plan was possible likewise does not establish unlawful motive unless the record reasonably connects the imperfection or choice to protected activity.

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The savings plan was real and broad

Finance supplied a \$612,000 annualized target. The workbook covered twenty-three authorized positions, of which twenty-one were filled and two vacant. B-7 removed five filled positions and both vacancies, leaving sixteen filled positions and projecting \$618,400 in savings. JA66–JA73, JA166–JA175. Benton does not dispute the target, the position counts, the four other terminations, or the elimination of the vacancies.

Those facts do more than show a background economic condition. They demonstrate a contemporaneous, company-wide process with a defined amount, multiple affected positions, versioned calculations, finance review, and final approval. The RIF did not begin as an undocumented decision to remove Benton alone. Her salary contributed materially to a plan that slightly exceeded the target, and her management work could be distributed without hiring a replacement. The presence of other mathematically possible plans does not make B-7 false. It shows Pike exercised the operating judgment that the protocol assigned to him.

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Coverage considerations explained the manager choice

Pike chose among plans by considering continuity, summer travel, and automation support. Wynn was carrying a Lantern transition through May 30; Ibarra supplied planned western travel capacity; and Keene maintained automation scripts used across reviews. Benton's responsibilities were important, but Pike concluded Northline, Oriole, remediation, and the quality meeting could be distributed among retained staff and Voss. The record documents that allocation before and after termination.

Benton attacks the wisdom and consistency of those judgments, but she offers no admitted evidence that Pike invented the underlying duties. The scorecards and testimony from Wynn, Ibarra, Voss, Solis, and the corporate designee described them. Different portfolios make the four managers useful comparators without making every credit interchangeable. A factfinder may disagree with the relative weights, but a court may not infer retaliation simply because it could design a different continuity plan. The question is motive, and the admitted record consistently ties the selection to functions the company decided to preserve.

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The score record was transparent and reviewable

Benton's imported 84 score fell to 68 after changes in continuity, availability, and uniqueness. Wynn, Ibarra, and Keene finished at 78, 78, and 75. The workbook retained the imported values, each change, the editor, the variance flags, and Pike's approval. JA66–JA87. Solis testified that she reconciled formulas but did not certify uniform treatment. JA126–JA135. That testimony exposes the limits of the review but does not show a concealed manipulation.

The minutes and witnesses supplied reasons for the changes: forward coverage, travel availability, and transferability of distinct work. Benton was not disciplined or labeled a poor performer; her positive history remained in the file. Blue Cedar did not claim that the final scores were an objective performance ranking insulated from judgment. They were planning inputs. Open flags and different measurement windows permit criticism of rigor. Without admitted evidence that those choices tracked protected activity, they do not reasonably establish that the recorded coverage reasons were a retaliatory disguise.

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Comparator differences were material

Benton emphasizes that every retained manager received some favorable treatment. But the cited credits concerned different operational needs. Wynn's credit followed a live transition; Ibarra's availability concerned planned western travel; Keene's uniqueness concerned automation scripts. Benton's Northline, Oriole, and remediation responsibilities were allocated across more than one person. The protocol required comparable evidence, not identical outcomes for employees with different portfolios.

Nor does the record show that Blue Cedar departed from a fixed rule whenever doing so benefited a noncomplainant. The process allowed calibrated judgment, exception support, and Pike's umbrella approval. The very version log Benton cites records who made each change and why the team discussed it. A jury could find some distinctions weak. The district court properly asked the further question: whether their weakness reasonably showed retaliatory motive. In the absence of an admitted motive statement, a pattern tied to protected status, or proof that the duties were fabricated, the comparator evidence supports second-guessing, not the required but-for inference.

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Alternative plans depended on different operating choices

Alternatives C-4, D-2, and E-3 retained Benton and reached the overall target only when paired with a separately modeled \$14,600 archive-hosting consolidation. Each removed or shifted a different manager function. Pike rejected those combinations because he viewed Wynn's transition, Ibarra's travel capacity, or Keene's scripts as harder to replace at that time. Benton remained in those models because the modeling was comparative, not because all plans were operationally equal.

The alternatives prove arithmetic did not mandate Benton's selection. Blue Cedar has never said it did. Its reason was the combination of savings and coverage. A decisionmaker may choose among multiple cost-saving plans unless the choice is made for a prohibited reason. The record supplies contemporaneous coverage considerations and no admitted evidence connecting rejection of C-4, D-2, or E-3 to Benton's complaint or charge. Treating the existence of alternatives as proof of pretext would turn every multi-option RIF into a jury trial without evidence of discriminatory or retaliatory selection.

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Knowledge and timing do not establish pretext

Pike received the EEOC packet, opened it, replied to a preservation request, attended the February 12 meeting, and knew before termination that Benton had raised an assignment matter and an EEOC matter. Blue Cedar does not ask the court to disregard those facts. They support the initial causal showing. Pike also testified that he did not consider the protected activity when choosing B-7. The record contains no admitted contrary statement by him.

The workbook opened four days after agency notice and termination occurred six weeks after receipt. Timing deserves consideration, but the process also followed a finance target, covered twenty-three positions, eliminated seven positions, and produced five terminations. Benton offers no evidence that the finance need was manufactured after the notice. When an actual intervening RIF includes documented reasons for the individual choice, proximity alone does not allow a reasonable finding that retaliation was the real and but-for cause. Otherwise the initial threshold would swallow the ultimate burden Foster preserves.

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The explanations remained parts of one account

The termination letter referred to budget reduction and redistribution of redundant management work. The EEOC response added salary, coverage, completion, and availability. Pike later discussed continuity, travel, automation, and client confidence, explaining the last phrase as continuity risk. The wording became more detailed, but the core did not change: Blue Cedar needed savings and selected the combination it believed preserved coverage.

Contemporaneous materials support that core. The protocol defined the relevant criteria. The workbook calculated salaries and scenarios. The calibration minutes addressed continuity, travel, and transferability. The March 20 email referred to savings, redundant management work, and the retained managers' coverage. JA83–JA93. No later explanation accused Benton of misconduct or replaced the RIF with an unrelated reason. A general initial statement followed by consistent detail is not a shifting explanation merely because later witnesses answer more questions. The unsupported phrase “client confidence” does not reasonably discredit the documented reasons as a whole.

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The cumulative record does not bridge the motive gap

The court must consider Benton's evidence together. Even cumulatively, it shows knowledge, close timing, debatable scoring, favorable comparator judgments, other possible plans, continued work, and increasingly detailed explanations. It can support suspicion and a conclusion that Blue Cedar did not use the most uniform process. It still lacks evidence that protected activity caused Pike to exercise his discretion against Benton.

The excluded statement cannot supply that bridge. It was Voss's alleged wording, not Pike's, and it did not claim Pike instructed her or shared a retaliatory motive. On the admitted record, Voss denied a protected-activity connection and described a coverage inquiry. Pike made the final choice after reviewing the scenarios. There is no evidence Voss falsified the alternatives, withheld a qualifying plan, or procured Pike's approval. Rule 56 permits reasonable inferences, not a chain that assumes both retaliatory intent and decisive subordinate influence from the same disputed business judgments.

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Conclusion

The exclusion order should be affirmed because the district court found a materially new subject, applied the Benjamin factors to the actual chronology, and imposed a sanction limited to the undisclosed information. Benton did not carry her burden to show substantial justification or harmlessness. The court should also preserve the order's express limits and continue to treat Wynn's timely comparator testimony as admitted.

The summary judgment should be affirmed because the admitted record does not permit a reasonable finding that retaliation was the real and but-for reason for Benton's selection. Blue Cedar's genuine target, broad RIF, recorded coverage considerations, and actual redistribution are not disproved by process criticism or alternative plans. If this court disagrees, the proper remedy is vacatur and remand without a merits finding, not judgment for Benton. Counsel certifies electronic filing and service on April 15, 2026. Blue Cedar respectfully requests affirmance of the exclusion order, summary judgment, and final judgment.